

25PSCV02934 25PSCV02934

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV02934 Hearing Date: August 31, 2026 Dept: G

Plaintiff

Jane Doe N.V.'s Motion to Compel Nonparty Los Angeles County District

Attorney's Office's Compliance with Subpoena for Production of Business Records

Respondent:

NO OPPOSITION

TENTATIVE

RULING

Plaintiff

Jane Doe N.V.'s Motion to Compel Nonparty Los Angeles County District

Attorney's Office's Compliance with Subpoena for Production of Business Records

is GRANTED.

Nonparty

Los Angeles County District Attorney's Office is ordered to supplement its response in TWENTY (20) DAYS and to identify individual documents, dates, authors, recipients, document counts, page ranges, and/or the factual basis necessary to assess the asserted privilege.

BACKGROUND

This

is a personal injury action arising out of childhood sexual abuse. Defendant Bassett Unified School District (the District) allegedly employed defendant Michael Anthony Barry (Barry) as a janitor at Torch Middle School (the School), which is part of the District. During the 2001 to 2002 school year, plaintiff Jane Doe N.V. (Doe) was allegedly a minor aged ten to eleven years old and a student at the School. In September or

October 2001, Barry allegedly approached Doe outside the girls' locker room, complimented her appearance in front of other employees of the District, and offered her candy. Over the following weeks, Barry allegedly repeatedly approached Doe around the school and offered her candy in exchange for picking up trash around the School. On three or four occasions during the school year, Barry allegedly lured Doe to the custodial office, locked the door behind them, touched Doe in a sexual manner, and warned her not to tell anyone. The District's employees allegedly ignored indications of the abuse.

On August 13, 2025, Doe filed the Complaint, alleging causes of action for (1) childhood sexual abuse; (2) intentional infliction of emotional distress; (3) negligent hiring, supervision, and retention; (4) failure to report suspected child abuse; (5) negligent supervision of a minor; and (6) negligence.

On July 2, 2026, the court conducted an informal discovery conference and directed Doe to file a motion to compel compliance with subpoena, which is unopposed.

This case is set for an informal discovery conference (x3) and a hearing on two motions to compel compliance with subpoenas on August 31, 2026. (The court notes that it permitted Doe to file motions to compel discovery as to the Los Angeles County District Attorney's Office (the District Attorney's Office) and the Los Angeles County Sheriff's Department (the Sheriff's Department) and set both anticipated motions for hearing. However, Doe only filed a motion to compel as to the District Attorney's Office.)

ANALYSIS

Doe moves to compel the District Attorney's Office's compliance with a subpoena for business records. For the following reasons, the motion is GRANTED.

Legal
Standard

A

party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. (See Code Civ. Proc., § 2020.010.)² A deposition subpoena may command: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things.³ (See Code Civ. Proc., § 2020.020.) Service of a deposition subpoena shall be done with sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition.⁴ (See Code Civ. Proc., § 2020.220, subd. (a).)⁵ Personal service of any deposition subpoena is effective to require a deponent who is a resident of California to: personally appear and testify, if the subpoena so specifies; to produce any specified documents; and to appear at a court session if the subpoena so specifies.⁶ (See Code Civ. Proc., § 2020.220, subd. (c).)

If a deponent fails to appear or produce requested documents for a deposition, the deposing party may file a noticed motion to compel deponent's compliance. (See Code Civ. Proc., § 1987.1, subd. (a).) A deponent who disobeys a deposition subpoena may also be punished for contempt without the necessity of a prior court order directing compliance.⁷ (See Code Civ. Proc., § 2020.240.)⁸ A noncompliant deponent may also be ordered to pay \$500 to the deposing party in addition to any damages the deposing party incurred as a result of the deponent's failure to attend the deposition. (See Code Civ. Proc., § 2020.240, citing Code Civ. Proc., § 1992.)

Discussion

Here, Doe served the District Attorney's Office with a deposition subpoena for business records on March 2, 2026. (See Mot., Gures Decl., ¶¶ 1, 4; see also Mot., Exh. 1.) The District Attorney's Office served its production of documents, which Doe characterized as deficient, and Doe's counsel sent meet and confer correspondence. (See Mot., Gures Decl., ¶¶ 5–6; see also Mot., Exhs. 2–3.) The District Attorney's Office responded with

a custodian declaration and a privilege log, but for records withheld, the District Attorney's Office lists only broad categories and does not identify individual documents, dates, authors, recipients, document counts, page ranges, or the factual basis necessary to assess the asserted protection. (See Mot., Exh. 4.) The court notes that the District Attorney's Office did not file an opposition to argue that its document production and subsequent privilege log were sufficient. (See *Sexton v. Super. Ct.* (1997) 58 Cal.App.4th 1403, 1410, applying a local rule to hold that "[t]he failure to file opposition creates an inference that the motion or demurrer is meritorious.")

Therefore,
the motion to compel compliance with subpoena is GRANTED. The District Attorney's Office is ordered to supplement its response and to identify individual documents, dates, authors, recipients, document counts, page ranges, or the factual basis necessary to assess the asserted privilege.

CONCLUSION

For
these reasons, the motion to compel compliance with subpoena for production of business records is GRANTED.

The
District Attorney's Office is ordered to supplement its response in TWENTY (20) DAYS and to identify individual documents, dates, authors, recipients, document counts, page ranges, or the factual basis necessary to assess the asserted privilege.